

24STCV24222 24STCV24222

County: los-angeles

Division: Civil Law and Motion

Department: 32

Hearing date: 2026-07-08

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Case Number: 24STCV24222 Hearing Date: July 8, 2026 Dept: 32

JOSE ARELLANO,

Plaintiff,

v.

DIAMOND CONSTRUCTION,

INC., et al.,

Defendants.

Case No.: 24STCV24222

Hearing Date: July 8, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel deposition

BACKGROUND

On September 18, 2024, Plaintiff

Jose Arellano filed this action against Defendants Diamond Construction, Inc.

(DCI) and Thomas Anastasios Christopoulos (Anastasios Christopoulos) for wage

violations and retaliation. On February 21, 2025, Tom Christopoulos (Tom

Christopoulos) was added as Doe 1.

On June 1, 2026, Plaintiff filed the instant motion to compel the deposition of DCI's person most knowledgeable. DCI filed an opposition on June 24, 2026. Plaintiff filed a reply on June 30, 2026.

LEGAL STANDARD

"If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination . . . or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice." (Code Civ. Proc., § 2025.450(a).)

DISCUSSION

The instant motion concerns the deposition notice for DCI's PMK, issued on March 27, 2026. (Chami Decl. ¶ 15, Ex. G.) The notice set the deposition for May 28, 2026. (Ibid.) On May 20, 2026, defense counsel mailed objections, which Plaintiff received on May 26, 2026. (Id., ¶ 20, Ex. I; Gemoets Decl. ¶ 8.) The objections indicated that the PMK would not appear on May 28, 2026 due to unavailability. (Ibid.) According to defense counsel, the PMK (Tom Christopoulos) suffered a work emergency, and counsel himself had a conflicting hearing in another matter. (Gemoets Decl. ¶ 7.) The PMK did not appear for deposition on May 28, 2026. (Chami Decl. ¶ 21.) The parties were subsequently unable to agree on alternative dates. (Id., ¶¶ 23-25; Gemoets Decl. ¶¶ 8-9.)

These facts indicate that an order compelling the deposition is warranted. However, sanctions are unwarranted as both parties acted with substantial justification.

CONCLUSION

Plaintiff's motion to compel deposition is GRANTED. Defendant Diamond Construction, Inc.'s person most knowledgeable shall appear for deposition on , 2026. Sanctions are denied.